

How to File an RTI in Sikkim

A citizen's step-by-step guide to the Right to Information Act, 2005, as applicable in the State of Sikkim.

1. What is the Right to Information (RTI) Act?

The Right to Information Act, 2005 gives every citizen of India the legal right to request information from any "public authority" — a government department, ministry, public sector undertaking, or any body substantially financed by the government. The public authority is legally bound to reply, ordinarily within 30 days.

2. Who can file, and what can be asked?

Any citizen of India can file an RTI application — no reason needs to be given for the request. You can ask for copies of documents, inspection of records, certified samples, and information held in any electronic form. You cannot ask a public authority to create new information, give opinions, or answer hypothetical questions — only for information that already exists in its records.

3. Fee for filing (Sikkim)

Under the Sikkim State Right to Information (Regulation of Fee, Cost and Miscellaneous) Rules, an application to a State Public Information Officer (SPIO) is ordinarily accompanied by an application fee of Rs. 100/-, payable by cash (against receipt), Indian Postal Order, court fee stamp, or demand draft drawn in favour of the concerned office/officer named as the payee.

Applicants who are Below Poverty Line (BPL) are exempt from the application fee — attach a copy of your valid BPL / Antyodaya / AAY card with the application.

Note: fee amounts and payment modes are occasionally revised by notification. Before filing, confirm the current fee and accepted payment mode with the concerned Public Information Officer or the Sikkim Information Commission (sikkim.gov.in).

4. Step-by-step filing process

1. Identify the public authority that holds the information you need, and the name/office of its State Public Information Officer (SPIO) or Assistant SPIO (ASPIO).
2. Write your application — you may use the format on the next page (Form 'A'), or plain paper. Mark it clearly "Application under the RTI Act, 2005" at the top.
3. State your questions as specific, numbered points. Vague or overly broad requests are more likely to be rejected or delayed.
4. Attach the application fee (see Section 3) and any supporting proof (e.g. BPL card, if claiming fee exemption).
5. Submit the application by post or in person to the SPIO; where the office is far, applications may also be routed through the ASPIO of the nearest sub-divisional office.
6. Keep a copy of the application and proof of submission/postage — you will need the date filed to track the reply deadline.

5. Reply timelines

Situation	Deadline for reply
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Normal request	30 days from receipt
Request concerns life or personal liberty	48 hours from receipt
Application routed through an Assistant SPIO	30 days + 5 days transmission time
Third-party information involved	Up to 40 days (with notice to the third party)

6. If you don't get a reply, or aren't satisfied

First appeal: If no reply arrives within the deadline, or you are unsatisfied with the reply, you may file a first appeal with the Appellate Authority of the same public authority within 30 days of the deadline/reply.

Second appeal: If the first appeal also fails to resolve the matter, you may file a second appeal with the Sikkim State Information Commission (SIC) within 90 days of the first appellate order.

Application Format — Form 'A'

Reproduced for citizen convenience, in the structure prescribed under the RTI Act, 2005 / Sikkim RTI Rules. You may photocopy this page, fill it by hand, and submit it — or use it as a template to type your own. Always verify the latest official version at sikkim.gov.in → Sikkim Information Commission → RTI Application Form.

1.	Name of the Applicant	_____
2.	Address (with Pin Code)	_____ _____
3.	Particulars of information sought:	
	(a) Subject matter of information	_____
	(b) Period for which information is sought	_____
	(c) Description of the information required	_____ _____
	(d) Whether required by post or in person	_____
	(e) In case by post — ordinary/speed/registered	_____
4.	Application fee enclosed (amount, mode)	_____
5.	BPL exemption claimed? (attach card copy)	Yes / No

Place: _____ Date: _____

Signature of Applicant: _____

This guide is published by IAYO's Transparency & RTI Resource Cell for citizen awareness. It is not an official government document. Application fee figures are drawn from the Sikkim State Right to Information (Regulation of Fee, Cost and Miscellaneous) Rules and public reporting; confirm current figures at sikkim.gov.in before filing.